

24x7 ON Court, Kollam

Anilkumar Sasidharan +1 other v/s Devadas Nair +3 others

KL-004182-2026

COMPLAINT UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

Synopsis

Parties

Complainant Name	Accused Name	Complainant's Advocate Name
Anilkumar Sasidharan	Devadas Nair	Meera Nandakumar
Thevally Traders Pvt Ltd	Karunagappally Marine Exports	Anoop Chandran
	Suresh Babu M	Fathima Beevi A
	Nisha Thomas	

Cheque details - Cheque 1

Date on cheque	Amount	Cheque number
12 December 2025	₹3,50,000	214507
Bank Name	Bank Branch	Bank Account Number
HDFC Bank	Kollam Main Branch	50100234567890

Cheque details - Cheque 2

Date on cheque	Amount	Cheque number
12 December 2025	₹1,75,000	214508
Bank Name	Bank Branch	Bank Account Number
HDFC Bank	Kollam Main Branch	50100234567890

Dishonour - Cheque 1

Date of presentation	Date on return memo	Return reason
2 January 2026	5 January 2026	Insufficient Funds
Bank Branch (Complainant)		
South Indian Bank, Kollam		

Dishonour - Cheque 2

Date of presentation	Date on return memo	Return reason
2 January 2026	5 January 2026	Insufficient Funds
Bank Branch (Complainant)		
South Indian Bank, Kollam		

Demand Notice 1

Date of dispatch of demand notice	Mode of service	Tracking number
20 January 2026	Registered Post with AD	-
Whether delivered?	Date of return	Reason for non-delivery
No	28 January 2026	Addressee moved from the address

Has the accused replied to the demand notice?

No

Cause of Action

Date of cause of action
12 February 2026

Jurisdiction invoked under Section
142(2)
South Indian Bank, Kollam -
complainant's bank branch

Any other complaint pending between
the same parties?
Yes

Court Name

JMFC-II, Kollam

Case Number

CMP/482/2025

Prayer / Relief sought

It is most respectfully prayed that this Hon'ble Court may be pleased to: (a) Take cognizance of the offence committed by the Accused under Section 138 of the Negotiable Instruments Act, 1881; (b) Issue process/summons against the Accused and direct him/her to appear before this Hon'ble Court; (c) Upon trial, convict and sentence the Accused under Section 138 of the Negotiable Instruments Act, 1881, to imprisonment for a term which may extend to two years, or with fine which may extend to twice the amount of the cheque, or with both; (d) Direct the Accused to pay compensation to the Complainant under Section 395 of the Bharatiya Nagarik Suraksha Sanhita, 2023, equivalent to the cheque amount along with interest 6% per annum from the date of dishonour; (e) Grant such other and further relief(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

1. Party details

1.1. Complainant

Complainant 1

Are you representing yourself as a
Party-in-Person?
No

Complainant Type
Individual

Phone Number
+919847012233

Full Name
Anilkumar Sasidharan

Age
54

Gender
Male

Differently abled?
-

Email ID
anil.sasidharan@gmail.com

Permanent Address
Sreyas, TC 14/221,
Kadappakada, Kollam, Kollam,
Kerala 691008

Is current address same as permanent?
Yes

Has this litigant transferred Power of Attorney to somebody else?
Yes

POA for Complainant 1

PoA Phone Number
+919995540118

PoA Holder Full Name
Lakshmi Menon

PoA Holder Age
41

PoA Holder Email
-

PoA Permanent Address
Flat 3B, Ashirvad Apartments,
Chinnakada, Kollam, Kerala
691001

PoA current same as permanent?
No

PoA Current Address
22/1140, Vaidyasala Road, Thevally, Kollam, Kerala 691009

Complainant 2

Are you representing yourself as a
Party-in-Person?
No

Complainant Type
Institution

Type of Institution
Private Limited Company

Institution Name Thevally Traders Pvt Ltd	Phone Number (Institution Contact) +914742765430	Email ID (Institution Contact) -
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Institution Address
2nd Floor, Beach Road, Thevally, Kollam, Kerala 691009

Authorized Representative for Complainant 2

Authorised Representative Phone +919446781200	Authorised Representative Full Name Rajeev Pillai	Authorised Representative Age 46
Authorised Representative Gender -	Authorised Representative Differently abled? -	Authorised Representative Email rajeev@thevallytraders.in
Authorised Representative Designation Manager - Credit	Authorised Representative Address 2nd Floor, Beach Road, Thevally, Kollam, Kerala 691009	

1.2. Advocate (Complainant)

Number of advocates
3

Advocate for Complainant 1, Complainant 2

Full Name	Bar Registration
Meera Nandakumar	K/1204/2011
Anoop Chandran	K/0876/2015
Fathima Beevi A	K/2210/2019

1.3. Accused

Accused 1

Accused Type Individual	Full Name Devadas Nair	Age 49
Mobile Number +919388776511	Email ID -	Address 1 Devi Nivas, Mundakkal East, Kollam, Kerala 691001
Police Station Kollam East	Address 2 14/882, NH Bypass, Kavanad, Kollam, Kerala 691003	-
Police Station -	Resides within jurisdiction Yes	-

Accused 2

Accused Type Institution	Type of Institution Partnership Firm	Institution Name Karunagappally Marine Exports
Mobile Number +914762620144	Email ID accounts@kmexports.co.in	Address Harbour Road, Karunagappally, Kollam, Kerala 690518
Police Station Karunagappally		

Persons Vicariously liable for the Institution

Person 1

Representative Full Name
Suresh Babu M

Representative Designation
Managing Partner

Representative Mobile
+919847556201

Representative Email
suresh@kmexports.co.in

Representative Address
Beach Road, Karunagappally,
Kollam, Kerala 690518

Police Station
Karunagappally

Person 2

Representative Full Name
Nisha Thomas

Representative Designation
Partner

Representative Mobile
+919446330817

Representative Email
-

Representative Address
Thomas Villa, Ochira, Kollam,
Kerala 690548

Police Station
-

Resides within jurisdiction
Yes

Accused 3

Accused Type
Individual

Full Name
Suresh Babu M

Address
Beach Road, Karunagappally,
Kollam, Kerala 690518

Accused 4

Accused Type
Individual

Full Name
Nisha Thomas

Address
Thomas Villa, Ochira, Kollam,
Kerala 690548

2. Case details

2.1. Cheque and return memo details

Cheque 1

Date on cheque
12 December 2025

Amount
₹3,50,000

Cheque Number
214507

IFSC Code
HDFC0000521

Bank Name
HDFC Bank

Bank Branch
Kollam Main Branch

Bank Account Number
50100234567890

Date of presentation/deposit
2 January 2026

Date of return
5 January 2026

Return reason
Insufficient Funds

Cheque 2

Date on cheque
12 December 2025

Amount
₹1,75,000

Cheque Number
214508

Bank details same as previous cheque?
Yes

IFSC Code
HDFC0000521

Bank Name
HDFC Bank

Bank Branch
Kollam Main Branch

Bank Account Number
50100234567890

Date of presentation/deposit
2 January 2026

Date of return
5 January 2026

Return reason
Insufficient Funds

-

2.2. Demand notice details

Demand Notice 1

Nature of debt or other liability

Supply of goods - marine produce consignment

Date of dispatch of demand notice

20 January 2026

Mode of service

Registered Post with AD

Tracking number

-

Whether delivered?

No

Date of Return

28 January 2026

Reason for non-delivery

Addressee moved from the address

Has the accused replied to the demand notice?

No

Has the Drawer made full or part payment due under the cheque?

Part Payment

How much payment has already been made?

₹50,000

2.3. Jurisdiction and limitation

Did the Payee (Complainant) deposit the cheque in their bank account?

Yes

Payee (Complainant) Bank Details - Cheque 1, Cheque 2

IFSC Code

SIBL0000432

Bank Name

South Indian Bank

Bank Branch

Kollam

Police Station of bank branch

Kollam East

Is there any other cheque dishonour complaint pending between the same parties?

Yes

Court

Case Number

JMFC-II, Kollam

CMP/482/2025

Date of cause of action

12 February 2026

Date of complaint filing

25 March 2026

Duration of delay

13 days

Reason for praying condonation of delay

The complainant was admitted at Bishop Benziger Hospital, Kollam from 20 February 2026 to 14 March 2026 and could not instruct counsel during that period. Discharge summary is produced as proof of reasons for delay.

2.4. ADR, prayer and other details

Would you like to settle the case outside the court through alternative methods of dispute resolution?

Yes

Additional details (Other Details)

The complainant has supplied marine produce to the accused firm since 2019 on running account. Both cheques were issued towards the November 2025 consignment and were dishonoured on the same memo date.

Interim Relief

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to: Direct the Accused to pay interim compensation to the Complainant under Section 143A of the Negotiable Instruments Act, 1881, during the pendency of the trial, of a sum not exceeding 20% of the cheque amount i.e. Rs. 1,05,000, within 60 days of the order or such further period not exceeding 30 days as this Hon'ble Court may allow for sufficient cause shown.

Final Relief

It is most respectfully prayed that this Hon'ble Court may be pleased to: (a) Take cognizance of the offence committed by the Accused under Section 138 of the Negotiable Instruments Act, 1881; (b) Issue process/summons against the Accused and direct him/her to appear before this

Hon'ble Court; (c) Upon trial, convict and sentence the Accused under Section 138 of the Negotiable Instruments Act, 1881, to imprisonment for a term which may extend to two years, or with fine which may extend to twice the amount of the cheque, or with both; (d) Direct the Accused to pay compensation to the Complainant under Section 395 of the Bharatiya Nagarik Suraksha Sanhita, 2023, equivalent to the cheque amount along with interest 6% per annum from the date of dishonour; (e) Grant such other and further relief(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

3. Evidence

3.1. List of witnesses

Witness 1

Full Name	Age	What will the witness prove
-	-	Presentation of both cheques and issue of the return memos
Designation	Mobile Number	Email ID
Branch Manager, South Indian Bank, Kollam	+914742742100	-
Address 1	South Indian Bank, Main Road, Kollam, Kerala 691001	

3.2. List of documents

S. No.	Document Name	Natively Digital
1.	Cheque 1	Yes
2.	Cheque 2	Yes
3.	Cheque return memo 1	No
4.	Cheque return memo 2	No
5.	Legal Demand Notice 1	Yes
6.	Proof of dispatch of demand notice 1	No
7.	Proof of delivery of demand notice 1	No
8.	Proof of debt / liability	Yes
9.	Proof of reasons for delay	No
10.	ID Card - Complainant 1	No
11.	ID Card - Complainant 2	No
12.	ID Card - PoA holder	No
13.	Power of Attorney Authorisation	No
14.	Vakalatnama	No
15.	Running account statement 2019-2025	Yes

Signed on 25 March 2026. Please see Page __ for the signatures.

4. Affidavit

I am the complainant / authorised representative of the complainant in the above case and am fully acquainted with the facts and circumstances of the case. I am competent and authorised to swear to this affidavit. The accused issued the above cheque in discharge of a legally enforceable

debt or liability. It has been dishonoured due to insufficiency of funds. A demand notice has been issued to the accused, but she/he has failed to make the payment due under the cheque. All other requirements under Section 138 of the Negotiable Instruments Act, 1881 have been complied with.

I confirm that the demand notice was served on the last known correct address of the accused(s).

In accordance with Section 225 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that there is sufficient ground for proceeding against the accused.

In accordance with Section 223 and other relevant provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that the contents of this complaint are true and correct to the best of my knowledge, belief and information.

The physical or electronic records of the documents etc. produced by me with this complaint are in my lawful and proper custody and possession. It is therefore humbly prayed that this Hon'ble Court may be pleased to take cognizance of the offence committed by the accused, and issue process to the accused.

Lakshmi Menon

PoA holder for Complainant 1

Meera Nandakumar

Advocate for Complainant 1

Rajeev Pillai

Authorised Representative for Complainant 2

Meera Nandakumar

Advocate for Complainant 2

Documents uploaded by the Complainant.

[the 15 uploaded files follow here, in the order of section 3.2]